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MASTER MANAGEMENT SERVICES AGREEMENT

This Master Management Services Agreement ("Agreement") is made and entered into as of August 25 2019 (the "Effective Date") by and between The Institute of Electrical and Electronics Engineers, Incorporated ("IEEE"), a New York not-for-profit corporation with offices at 445 Hoes Lane, Piscataway, New Jersey 08855-1331, on behalf of the Oceanic Engineering Society ("OES"), Marine Technology Society, Inc. ("MTS") located at 1100 H St NW #100, Washington, DC 20005 (IEEE and MTS together herein the "Organizers"), and The Coulter Companies, Inc. dba MCI USA, a Virginia corporation with principal place of business at 7918 Jones Branch Road, Suite 300, McLean, VA 22102 ("Management Company")

RECITALS:

WHEREAS, IEEE and MTS are each, individually a not-for-profit, educational and scientific organization engaged in technical publishing, the conducting of conferences and related scientific and educational activities;

WHEREAS, IEEE and MTS are committed to the principle that all persons shall have equal access to programs, facilities, services, and employment without regard to personal characteristics not related to ability, performance, or qualifications as determined by IEEE policy and/or applicable laws;

WHEREAS, Management Company is in the business of providing certain services that the Organizers would like to obtain in connection with the tasks described in the schedule(s) attached hereto;

NOW, THEREFORE, in consideration of the premises and mutual covenants contained in this Agreement and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties agree as follows:

1. SERVICES

1.1 Management Company agrees to provide the services set forth in each statement of work (the "Services") governed by this Agreement. Any statement of work governed by this Agreement (each, a "Statement of Work") shall include a delineation of all fees and expenses associated with such Services. Any Statement of Work may only be changed by written agreement signed by all parties to this Agreement.

1.2 Each Statement of Work shall, to the extent applicable, contain: (a) the description of the project and the Services to be performed by Management Company; (b) the timeline of the deliverables to be produced by Management Company; and (c) the fees and expenses to be paid to Management Company and the applicable payment schedule.

1.3 During the course of Management Company's performance of Services under any Statement of Work, the Organizers may request (i) changes to the Services and/or (ii) for additional services to be provided by the Management Company. Management Company shall incorporate any mutually agreed upon changes and parties shall execute a written amendment to the Agreement, signed by both parties, setting forth the amended scope of work and any change in the applicable fees. The Statement of Work and any amendments must be submitted to conference-contracts@ieee.org and conference-contracts@mts.org for review.

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2. PAYMENT

2.1 **Fees and Expenses**: Management Company shall invoice both IEEE Meetings, Conferences & Events ("MCE") and MTS, individually, for fees due pursuant to the payment schedule set forth in the applicable Statement of Work. Management Company shall receive payment for the Services as detailed in the Statement of Work, and receive reimbursement of all appropriately documented expenses, as permitted in the Statement of Work. Management Company shall not exceed the fee and expense listed in the Statement of Work without the prior written consent of the Organizers. Management Company shall submit to the Organizers, for approval, all potential, individual expenses prior to incurring any such expenses, unless otherwise permitted in the Statement of Work. Neither IEEE nor MTS shall be liable, under any circumstances, for reimbursement of any expenses incurred by the Management Company unless Management Company provides all pertinent supporting documentation of such expenses to the Organizers. Under no circumstances should the Management Company write a check to themselves to withdraw funds from the conference account for services rendered pursuant to this Agreement. Invoices and all supporting documents should be sent to conference-finance@IEEE.org and to conference-finance@mts.org.

2.2 **Payment to Management Company:** Payment of each invoice shall be due within thirty (30) days after approval by the Conference Chair and/or Conference Treasurer (each as defined in the applicable Statement of Work) of said invoice, which shall not be unreasonably withheld. Both IEEE and MTS, individually, reserve the right to examine any and all invoices provided by the Management Company.

Third Party Compensation: Other than as set forth in the Statement of Work, Management Company shall not accept fees, commissions, rebates, hotel points, incentives or any other perquisites from third parties in connection with any event listed in the Statement of Work (each, the "Event"). Management Company is not eligible to receive reward points, in relation to any Event, from hotels or other third parties contracted or paid for by the Organizers. Other than as set forth in the Statement of Work, Management Company shall not pay any fees, commissions, rebates or similar payments to third parties in connection with any Event.

3. FINANCIAL PROCEDURES

3.1 **Accounting Procedures:** All accounting procedures shall conform to generally accepted accounting principles in the United States. Management Company shall provide explanations and backup documentation to both IEEE and MTS for all charges upon request. Management Company shall not bill for services rendered in preparing explanations of charges or providing backup information to both IEEE and MTS. Management Company shall secure the best possible rates for all products and services described in this Agreement to minimize overall costs to the Organizers. Management Company is responsible for adhering to the limits of the budget as approved by the Organizers when executing its responsibilities under this Agreement. Management Company must obtain written and signed approval from both IEEE and MTS prior to exceeding the approved budget. Management Company shall exercise commercially reasonable care in receiving, holding and handling income or other money received from any source pursuant to the Event or this Agreement.

3.2 **Internal Audit and Final Reports:** An internal final audit of the Organizers' accounts and financial procedures in relation to the Event shall be conducted by the Conference Chair and/or Conference Treasurer of the Event immediately following the Event. In addition, Management Company shall prepare a final report, which shall be approved by the Conference Chair and/or

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Conference Treasurer of the Event and sent to conference-finance@ieee.org and conference-finance@mts.org. Notwithstanding anything in this paragraph, both IEEE and MTS, individually, may review and audit the accounts, financial procedures and any and all other records related to the Event and held by Management Company at any time prior, during or after the Event with five (5) business days prior notice.

3.3 **Final Distribution of Funds and Professional Audit:** The final distribution of funds shall be completed as soon as possible after the Event, but no later than ninety (90) days following the Event. A professional audit may be conducted thirty (30) days after the final distribution of funds, upon written notice, by either: (i) IEEE's internal audit department, or (ii) an outside certified public accounting firm that has been preapproved by both IEEE and MTS. The Organizers shall be responsible for all direct costs of such an audit. Results of the audit and all backup documentation, regardless of the auditor, shall be sent to conference-finance@ieee.org and conference-finance@mts.org upon completion of the audit.

3.4 **Organizer Signed Contracts**:

(a) **Contracts to be signed by IEEE**. Management Company, when negotiating contract(s) that will be signed by IEEE, shall consult with IEEE and MTS to ensure that all contracts are in compliance with IEEE's standards. Management Company shall ensure all contracts will be sent to conference-contracts@ieee.org for review and execution pursuant to IEEE policies and procedures. Management Company and IEEE expressly agree that Management Company does not have the right, power or authority to enter into any contract, including, but not limited to, Memorandum of Understandings, grant agreements, letters of intent, revenue agreements or subsidies agreements, sponsorship agreements or commission agreements, on behalf of IEEE or any of its employees, subsidiaries, affiliates or agents. IEEE shall provide contract templates ("Contract Templates") to the Management Company after the execution of this Agreement. The Management Company shall, whenever commercially possible, use the applicable Contract Templates when negotiating contracts that will be signed by IEEE and MTS. If no applicable Contract Template is provided, Management Company will utilize contract templates from the vendor or Management Company. Management Company acknowledges that, as between the Parties, the Contract Templates are the intellectual property of IEEE, and the Management Company shall have no right to use the Contract Template except when performing Services in accordance with this Section 3.4(a).

(b) **Contracts to be signed by MTS.** Management Company, when negotiating contract(s) that will be signed by MTS, shall consult with MTS and IEEE to ensure that all contracts are in compliance with MTS's standards. Management Company shall ensure all contracts will be sent to conference-contracts @ mts.org for review and execution pursuant to MTS policies and procedures. Management Company and MTS expressly agree that Management Company does not have the right, power or authority to enter into any contract, including, but not limited to, Memorandum of Understandings, grant agreements, letters of intent, revenue agreements or subsidies agreements, sponsorship agreements or commission agreements, on behalf of MTS or any of its employees, subsidiaries, affiliates or agents.

3.5 **Final Registration Report**: If the services outlined in the SOW include registration, Management Company shall, within thirty (30) days of the end of the Event, prepare and send a final registration report to both IEEE (at conference-finance@IEEE.org) and MTS (at conference-finance@mts.org) This report shall include the following information:

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- Registrant's full name and contact information (including company name, email, and postal address);
- Registrant's order or transaction number;
- Registration type (e.g. student, member, non-member);
- Registration cost;
- Payment method (e.g. credit card, bank wire transfer, invoice);
- Confirmation that the payment was successful;
- Transaction date (date and time when the credit card was processed); and
- Total amount paid.

3.6 **Organizers Notification**: Notwithstanding anything written in this Agreement, the Management Company shall notify both IEEE and MTS if (i) there are any material changes to the approved budget, (ii) expenses exceed the approved budget, or (iii) there are any other changes or developments that could have material impact on the Event or similar future events.

4. INTELLECTUAL PROPERTY RIGHTS

4.1 As between the Organizers and Management Company, to the extent that any of the services rendered by Management Company under this Agreement result in Management Company's creation of any works specifically created for IEEE, including, but not limited to, textual, audio or visual works, conference names/acronyms/logos, conference proceedings, and source code ("Works"), each such Work shall be deemed specially commissioned by the Organizers and shall be considered a "work made for hire" as that term is defined in the United States Copyright Act. Management Company acknowledges that the Organizers are and shall be considered the author of each such Work and shall at all times be the sole owner of all rights in and to each such Work. The Organizers shall also have the exclusive right (but not the obligation) to obtain copyright registration of, or relating to, any and all such Works in the name of either IEEE or MTS, or in such other name or names as the Organizers may elect, and to obtain renewals thereof. If, for any reason, it is determined that any such Works are not works made for hire, then this Agreement shall be deemed an assignment to the Organizers of all rights in and to such Works, without any further compensation to Management Company. Management Company agrees to execute and deliver to the Organizers, promptly upon request, any documents that the Organizers may reasonably request to evidence the Organizers' exclusive rights as provided above and to enable or assist the Organizers to obtain and protect their rights therein.

4.2 Management Company understands and agrees that all intellectual property relating to IEEE conferences, including but not limited to conference proceedings, conference names/acronyms/logos, conference websites, domain registration and IEEE trademarks (e.g. the IEEE name and Masterbrand), is the exclusive intellectual property of IEEE and its licensors. Solely in connection with the Services, and only for the duration of the Term, IEEE grants Management Company a non-exclusive, royalty-free, worldwide license to use and reproduce such IEEE intellectual property provided such usage is in accordance with applicable IEEE brand guidelines. Except as otherwise explicitly stated, nothing in this Agreement shall transfer ownership to or create any license interest for Management Company with respect to the IEEE intellectual property.

4.3 Management Company understands and agrees that all intellectual property relating to MTS conferences, including, but not limited to, conference proceedings, conference names/acronyms/logos, conference websites, domain registration and MTS trademarks (e.g. the MTS's name and Masterbrand), is the exclusive intellectual property of MTS and its licensors. Solely in

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connection with the Services, and only for the duration of the Term, MTS grants Management Company a non-exclusive, royalty-free, worldwide license to use and reproduce such MTS intellectual property provided such usage is in accordance with applicable MTS brand guidelines. Except as otherwise explicitly stated, nothing in this Agreement shall transfer ownership to or create any license interest for Management Company with respect to the MTS intellectual property.

4.4 **Management Company Intellectual Property:** The Organizers acknowledge that in the course of its performance, the Management Company may use products, software, materials and methodologies proprietary to the Management Company ("Management Company Intellectual Property"). Except as otherwise specifically stated herein, IEEE and MTS shall obtain no ownership rights in such the Management Company Intellectual Property. Subject to the payment of the fees and any applicable terms and conditions set forth in a Statement of Work, the Management Company hereby grants to IEEE a nonexclusive, nontransferable, royalty-free, worldwide license to use, reproduce, distribute, and make derivative works of the Management Company Intellectual Property in connection with the Services described in the applicable Statement of Work.

5. REPRESENTATIONS, WARRANTIES AND INDEMNIFICATION

5.1 **Authority**: IEEE, MTS, and Management Company each represents and warrants to the others that: (a) it has the necessary power and authority to enter into this Agreement; (b) the execution and performance of this Agreement has been authorized by all necessary corporate or institutional action; (c) entry into and performance of this Agreement will not conflict with any provisions of law or the certificate of incorporation or by-laws of the party; (d) no action by any governmental organization is necessary to make this Agreement valid and binding upon the party; and (e) it possesses all licenses and other governmental approvals necessary to perform its obligations under this Agreement.

5.2 **Conduct**: Management Company represents and warrants that as of the Effective Date and during the Term of this Agreement, it shall (a) ensure that Management Company, at a company level, shall not take any actions that shall diminish the reputation and goodwill of the Organizers, and shall require its employees, agents and affiliates directly involved in providing any Services or publicly associated with an Event to conduct themselves, so as to not diminish the reputation and goodwill of the Organizers; (b) perform all of the Services using sound practices and in a competent and professional manner and will only use knowledgeable, trained and qualified professionals; (c) provide Services that materially conform to the specifications set forth in the applicable Statement of Work; (d) not knowingly violate the copyright, patent, trademark, trade secret or other right of any third party while delivering Services, this includes, but is not limited to, acquiring any and all rights and permissions for third party intellectual property to be used, reproduced, distributed, or performed during or as part of the conference; (e) comply with all policies and procedures of both IEEE and MTS individually that are provided to Management Company in writing, including, but not limited to, IEEE's Code of Conduct; (f) not, in any way, solicit business on its own behalf, or on behalf of any third party, while performing any Services in relation to this Agreement or any event listed in a Statement of Work (each, the "Event"); (g) disclose to IEEE and MTS individually any and all other obligations, arrangements, agreements or interests of Management Company that may constitute or give rise to a conflict of interest on the part of Management Company given the nature and terms of this Agreement, (h) not enter into any obligations of a contractual or other nature with any person, firm, corporation or other entity that is inconsistent or in conflict with this Agreement or IEEE's Principles of Business Conduct, or that would prevent, limit or impair the execution of this Agreement or the performance by Management Company of its obligations hereunder; and (i) not confer, directly

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or indirectly, any personal interest or benefit upon any IEEE or MTS officer, director, employee or volunteer who exercises any functions or responsibilities in connection with this Agreement. Management Company shall ensure that all of its subcontractors comply with these obligations in all respects.

5.3 **Compliance with Applicable Laws:** Management Company represents and warrants that it shall comply with all laws and regulations applicable to its obligations and duties under this Agreement, including, but not limited to, all laws and regulations concerning anti-competition, anti-corruption, anti-terrorism, data privacy or security or the collection, storage, transfer or other dissemination of data.

5.4 **Indemnification**: Management Company agrees to indemnify, defend and hold harmless both IEEE and MTS, individually, their parents, subsidiaries, affiliates and their officers, agents and employees from and against any and all claims, damages, liabilities, losses and/or expenses (including attorneys‘ fees and costs and any claim or threatened claim of third parties) incurred by either IEEE or MTS (collectively, “Losses”) that arise from any: (a) alleged or actual infringement or misappropriation of any copyright, patent, trademark, trade secret or other right based upon the Services or deliverables provided by Management Company pursuant to this Agreement; (b) gross negligence or willful misconduct of Management Company; (c) Management Company’s failure to perform fully its obligations herein in a timely manner; or (d) breach of any of Management Company’s representations and warranties herein. This provision shall also apply to any and all subcontractors hired by the Management Company.

5.5 The Organizers agree to indemnify, defend and hold harmless Management Company, its parents, subsidiaries, affiliates and its and their officers, agents and employees from and against any and all Losses that arise from any: (a) alleged or actual infringement or misappropriation of any copyright, patent, trademark, trade secret or other right based upon the services or deliverables provided by the Organizers pursuant to this Agreement; (b) gross negligence or willful misconduct of the Organizers; (c) the Organizers’ failure to perform fully their obligations herein in a timely manner; or (d) breach of any of the Organizers’ representations and warranties herein. This provision shall also apply to any and all subcontractors employed by the Organizers.

5.6 **Limitation on Liability**: IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES (INCLUDING, WITHOUT LIMITATION, LOST PROFITS, LOST BUSINESS, LOSS OF DATA OR COST OF SUBSTITUTE SERVICES) ARISING OUT OF OR IN CONNECTION WITH ANY AGREEMENT BETWEEN THE PARTIES, OR THE SERVICES PERFORMED THEREUNDER UNDER ANY THEORY OF LIABILITY (WHETHER IN CONTRACT, TORT, STRICT LIABILITY OR OTHERWISE), EVEN IF THAT PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. IN ADDITION, EITHER PARTY SHALL ONLY BE LIABLE TO THE OTHER UNDER ANY THEORY OF LIABILITY (WHETHER IN CONTRACT, TORT, STRICT LIABILITY OR OTHERWISE) FOR ANY DIRECT DAMAGES IN AMOUNT EQUAL TO (A) ACTUAL DAMAGES OR (B) THE FEES PAYABLE FOR THE SERVICE(S) GIVING RISE TO THE CLAIM DURING THE CALENDAR YEAR IN WHICH THE EVENT OCCURS, WHICHEVER IS LESS.

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6. EMERGENCY COMMUNICATION PROCEDURES

6.1 In the event that Management Company becomes aware of a medical or other emergency in connection with or during the Event, Management Company, shall immediately notify Organizers and provide the name(s) of such attendee(s) and the nature of the emergency. Management Company shall contact the Organizers' Event Emergency Response Team ("EERT") at eert@ieee.org. EERT will provide guidance to Management Company and implement an emergency plan, if applicable. Management Company will not make statements of any kind on behalf of Organizers.

6.2 If requested by Organizers, each Statement of Work shall include a comprehensive event emergency plan. A copy of the plan shall be made available to relevant individuals participating in the Event, including Management Company's employees, agents, affiliates and subcontractors. In addition, if Management Company is hired to provide on-site management services during the Event, it will review the venue's emergency plans and inform Organizers of any issue, concerns or gaps. Management Company shall take reasonable steps to work with Organizers and the venue to address these issues, concerns or gaps.

7. CONFIDENTIAL INFORMATION

7.1 **Confidentiality and Ownership of Information and Other Assets**: No party shall disclose to a third-party Confidential Information of the other parties. The receiving party shall use the same degree of care as it uses to protect the confidentiality of its own confidential information of like nature, but no less than a reasonable degree of care, to maintain in confidence the Confidential Information of the disclosing party. The foregoing obligations shall not apply to any Confidential Information that: (a) can be demonstrated to have been publicly known at the time of the disclosing party's disclosure of such Confidential Information to the receiving party; (b) becomes part of the public domain or publicly known, by publication or otherwise, not due to any unauthorized act or omission by the receiving party; (c) can be demonstrated to have been independently developed or acquired by the receiving party without reference to or reliance upon such Confidential Information, as evidenced by the receiving party's written records; (d) is provided to the receiving party by a third party who is under no obligation to the disclosing party to keep the information confidential; or (e) is required to be disclosed by law, provided that the receiving party takes reasonable and lawful actions to avoid and/or minimize such disclosure and promptly notifies the disclosing party so that the disclosing party may take lawful actions to avoid and/or minimize such disclosure. Management Company shall ensure that all of its subcontractors comply with this obligation.

7.2 **Return of Confidential Information**: All Confidential Information and any and all copies and reproductions thereof shall, upon the expiration or termination of this Agreement for any reason or within fifteen (15) days of written request by either IEEE or MTS, be promptly returned to it, or in the alternative, destroyed upon the written request of both IEEE and MTS individually. Management Company shall ensure that all of its subcontractors comply with this obligation. In the event of such requested destruction, the Management Company and all of its subcontracts shall provide to IEEE and MTS, individually, written certification of compliance therewith within fifteen (15) days of such written request.

7.3 **Definition**: "Confidential Information" as used herein means information identified by either party as "Confidential" and/or "Proprietary," or information that, under the circumstances, ought reasonably be treated as confidential and/or proprietary. "Confidential Information" shall include, but not be limited to, credit card information, names and contact information of conference committee

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members, exhibitors and conference delegates (registrants), technical information, market research, membership data, analyses, studies, developments, processes, present and/or future product information, pricing information, business plans or other documents, information and materials that contain or reflect such information.

7.4 Where Management Company processes personal data on behalf of IEEE and/or MTS in connection with the performance of this Agreement, it shall: (a) process such personal data in accordance with all applicable laws, only for purposes reasonably necessary for the performance of the Services in accordance with a Statement of Works and in accordance with the documented written instructions of the Organizers (except where required otherwise by law); (b) treat such data as Confidential Information of the Organizers in accordance with Section 7; (c) where such personal data is collected in the European Economic Area ("EEA"), not transfer such personal data to any location outside the EEA except in accordance with the safeguards required under the Regulation (EU) 2016/679 (the General Data Protection Regulation) and any applicable national legislation ("EU Data Protection Laws"); (d) ensure that the appropriate measures for the adequate protection of personal data against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access are implemented; (e) co-operate fully with both IEEE and MTS to enable each to adequately discharge its responsibility under applicable laws (including assisting with data subject access or erasure requests); (f) immediately notify both IEEE and MTS, individually, of any actual or suspected data breach and provide all available information; and (g) not allow any third party to process such personal data on its behalf except with both IEEE's and MTS's prior written consent. References to 'personal data' and to 'processing' in this Section 7, insofar as they concern data collected in the EEA, shall have the meaning given to these terms under the EU Data Protection Laws.

7.5 Management Company shall delete all of the Organizers' information within its custody or control, including, but not limited to, completed project data, email addresses and all other personal data processed on behalf of the Organizers upon the earliest of a) termination of this Agreement; b) written request by the Organizers; or c) the personal data no longer being required for the performance of the Services.

8. MASTER BRAND

8.1 All IEEE-branded, end-user facing, materials (including, but not limited to, Web sites, Mobile Apps, print collateral, and promotional items such as bags, pens and shirts) for IEEE conferences, publications, products, services, and the like must adhere to the guidelines established by IEEE. These guidelines are available at http://www.IEEE.org/about/toolkit/masterbrand/index.html. Management Company is accountable for obtaining and using the IEEE's Master Brand according to IEEE's guidelines. The Master Brand can only be used by an approved Organizers' conference. To confirm Conference Approval, contact conference-contracts@IEEE.org

8.2 All MTS-branded, end-user facing, materials (including, but not limited to, Web sites, Mobile Apps, print collateral, and promotional items such as bags, pens and shirts) for MTS conferences, publications, products, services, and the like must adhere to the guidelines established by MTS. These guidelines are available at https://www.mtsociety.org/wp-content/uploads/2019/08/handout-MTS-002-Brand-Guidelines-2013-05-02.pdf

8.3 Management Company agrees to obtain written approval of any such materials from both IEEE and MTS, individually, or the Conference Chair of the Event before final utilization and production of same.

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9. INFORMATION SYSTEMS SECURITY REQUIREMENTS

9.1 Management Company shall at all times provide services under this Agreement in a secure environment, provide adequate protection and have in place appropriate security policies, procedures, programs, standards, access control methodologies and network protection techniques to safeguard Management Company's systems and the Organizers' systems and data from both physical and non-physical threats. All the foregoing safeguards shall comply with prevailing industry standards but in no case consist of less than reasonable care.

9.2 The Organizers or their representatives shall have the right to review, inspect and/or audit Management Company's security program, technical environment and business continuity arrangements; provided, however, that such review occurs during normal business hours, upon at least five (5) days written notice, and not more frequently than once every 12-month period.

9.3 Management Company shall delete all IEEE or MTS-related information assets within its custody or control, including, but not limited to, completed project data and associated email addresses. Such deletion must occur within three (3) months after the last transaction involving such information assets has elapsed or immediately upon the written request of either IEEE or MTS individually.

10. MANAGEMENT COMPANY INSURANCE REQUIREMENTS

10.1 Management Company shall maintain during the term of this Agreement the following insurance coverage(s) which shall be issued by an insurance company with a current A.M. Best rating of A-: VII or better:

(a) General Liability Insurance: Insurance with a limit of not less than $1,000,000 per occurrence for bodily injury, property damage including coverage for personal injury, products and completed operations, and blanket contractual coverage, including but not limited to the liability assumed under the indemnification provision of this agreement;

(b) Automobile Liability: Insurance with a limit for bodily injury and property damage of not less than $1,000,000 each occurrence with respect to the Management Company's owned, non-owned, and hired vehicles;

(c) Workers Compensation: Insurance as required by any applicable law and employer's liability insurance of not less than $100,000 for each accident, $100,000 disease policy for each employee, and $500,000 disease policy limit or other social insurance as required by local law; and

(d) Commercial Crime Insurance: If the Management Company, at any time, shall handle registration or exhibit income and/or have access to any Event funds, it shall maintain insurance with policy limits of at least $1,000,000 including coverage for client funds with both IEEE and MTS as joint payees.

10.2 Prior to commencing work or services, if requested by either IEEE or MTS, Management Company shall furnish IEEE and MTS, each individually, with a certificate of insurance evidencing the insurance coverage(s) and limits required by this Agreement. The insurance policies except Workers' Compensation, Commercial Crime and Professional Liability (if applicable), shall be endorsed to name IEEE and MTS, their agents, officers, employees, and volunteers as additional

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insured. In the event any insurance policies required by this Agreement are written on claims made basis, coverage shall extend for two years past completion and acceptance of the Management Company's work or services and must be evidenced by annual certificates of insurance. Management Company shall provide IEEE and MTS, each individually, with a 30-day advance written notice if any of the required insurance coverage(s) have been cancelled, terminated, non-renewed or materially changed and do not meet the requirements set forth above, and a 10-day written notice for cancellation due to non-payment of premium. Any such cancellation, termination, non-renewal or material change may result in suspension or termination of this Agreement by the Organizers at any time. If any part of this Agreement is subcontracted, these insurance requirements also apply to all subcontractors. Failure to furnish certificates of insurance in compliance with this Agreement prior to commencement of work may result in suspension or termination of this Agreement.

10.3 Management Company shall exercise due care in performing the Services and shall be liable for all damages and injury caused by its negligence or misconduct and/or the negligence or misconduct of its employees, agents, affiliates and subcontractors. Management Company will be charged in full for all repairs and replacements that are required to restore the property to pre-damage condition or a condition otherwise reasonably acceptable to the Organizers. Any property damage by Management Company or Management Company's employees, agents, and subcontractors shall be brought to the attention of IEEE and MTS, each individually, immediately after the occurrence.

11. PAYMENT CARD INDUSTRY (PCI) DATA SECURITY STANDARD (DSS) COMPLIANCE

11.1 If the Management Company, at any time, handles registration or exhibit income Management Company acknowledges that it shall be PCI complaint and shall only use systems to collect credit cards funds that are PCI compliant. If requested by either IEEE or MTS, Management Company shall provide both IEEE and MTS, individually, with a certificate of compliance issued by the Payment Card Industry. Furthermore, the Management Company shall maintain compliance throughout the term of this Agreement.

12. PUBLICITY

12.1 Management Company shall not use IEEE's or MTS's name in Management Company's promotional materials, customer lists, press releases, product brochures, or financial reports. In addition, Management Company shall not use IEEE's or MTS's names, logos or trademarks without the expressed prior written consent of MTS, and IEEE Meetings Conference & Events (MCE) on behalf of IEEE, such consent will be given or withheld at the sole discretion of MCE. Request for permission should be sent to ieee-mce@IEEE.org and conference-finance@mts.org. Any such use shall comply with Section 8.

13. TERM AND TERMINATION

13.1 The term of this Agreement shall commence on the Effective Date and, unless sooner terminated pursuant to provisions herein, shall continue until the completion of any and all Statements of Work executed within five (5) years after the Effective Date ("Term"). Parties will not be able to sign a new Statement of Work pursuant to this Agreement five (5) years after the Effective Date.

13.2 This Agreement or applicable Statement of Work may be terminated under the following circumstances:

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(a) Either the Organizers or Management Company may terminate this Agreement and/or applicable Statement of Work immediately without liability upon written notice if the other party has failed to cure a breach of this Agreement or applicable Statement of Work within thirty (30) days following written notice of that breach given by the non-breaching party. Notwithstanding the above, if either the Organizers or Management Company engages in fraud, intentional misrepresentation or willful misconduct in connection with its performance of this Agreement or applicable Statement of Work, the other party shall have the right to terminate this Agreement and applicable Statement of Work immediately without notice.

(b) Any party may terminate this Agreement or applicable Statement of Work immediately without liability if any party ceases to conduct business or is the subject of a petition in bankruptcy which is not withdrawn within 60 days.

(c) The Organizers may terminate this Agreement or applicable Statement of Work immediately without liability if the Organizers reasonably believe that the services provided by Management Company may be adversely affected by an upcoming change in Management Company's ownership or management team.

(d) The Organizers may terminate this Agreement or applicable Statement of Work without any liability, excepting payment due pursuant to Section 13.3, and for any reason upon forty-five (45) days written notice to the Management Company.

In order to be effective, all terminations of this Agreement and/or the applicable Statement of Work pursuant to this Section must be in writing and a copy of the termination notice submitted to conference-contracts@ieee.org and conference-finance@mts.org.

13.3 If the Organizers, for any reason, choose to terminate this Agreement or any Statement of Work, the Organizers shall be liable for Management Company's labor and reasonable out-of pocket expenses incurred prior to the date of termination. Backup documentation (invoices, time sheets and any other relevant information) shall be provided to both IEEE and MTS for all charges within one week of notice of termination. Neither IEEE nor MTS shall be liable for services rendered by Management Company in preparing explanations of charges or providing backup information to the Organizers. In the event of such termination, Management Company shall make a timely and professional transition of all matters from Management Company to third parties designated by the Organizers. In addition, unless such termination by the Organizers is pursuant to Sections 13.2(a), 13.2(b), or 15.4, the Organizers shall reimburse the Management Company for the actual cost of its reasonable labor and out-of pocket expenses incurred during such transition.

14. RELATIONSHIP OF PARTIES

14.1 **Independent Contractor and Third-Party Agreements**: In rendering the Services, Management Company shall be acting as an independent contractor and not as an employee or agent of either IEEE or MTS. Management Company and its employees shall have no claims or rights to receive or participate in any employee benefit plans or arrangements of either IEEE or MTS. As an independent contractor, Management Company shall have no authority, express or implied, to commit or obligate either IEEE or MTS, individually or collectively, in any manner whatsoever, except as specifically authorized from time to time in writing by an authorized representative of the respective party, with specific reference to this provision. Nothing contained in this Agreement shall be

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construed or applied to create a partnership, joint venture, or employer/employee relationship. Management Company shall be responsible for the payment of all federal, state and local taxes payable with respect to all amounts paid to Management Company under this Agreement; provided, however, that if either IEEE or MTS, individually or collectively, are determined to be liable for collection and/or remittance of any such taxes, Management Company shall immediately reimburse the Organizers for all such payments made by the Organizers. All persons furnished by Management Company shall be considered solely Management Company's employees or agents and Management Company shall be responsible for payment of all unemployment, social security and other payroll taxes required by federal, state and local laws, including contributions from them when required by law. Pursuant to IRS regulations, the Organizers are required to report payments under Management Company's Social Security or Taxpayer's Identification Number. During the term of this Agreement, Management Company shall perform all services to the best of its ability and shall devote such portion of its business time, attention, skill and energy as may be reasonably required to perform the Services.

14.2 **Separate Offices/Expenses**: Management Company shall maintain offices separate from those of both IEEE and MTS and shall bear all expenses and obligations incurred in connection with its performance of the Services. Management Company is solely responsible for purchasing and maintaining all business equipment (including, but not limited to, computers, printers, fax machines, telephones, and other office-related equipment and/or services) which Management Company deems necessary to perform the Services. Management Company shall not be reimbursed for any business-related expenses, including, but not limited to, travel related costs and expenses, unless pre-approved by the Organizers in writing.

14.3 **Anti-Discrimination:** The Organizers are committed to the principle that all persons shall have equal access to programs, facilities, services, and employment without regard to personal characteristics not related to ability, performance, or qualifications as determined by IEEE's policy and/or applicable laws.

14.4 The Organizers prohibit discrimination, harassment or bullying against any person because of age, ancestry, color, disability or handicap, national origin, race, religion, gender, sexual or affectional orientation, gender identity, appearance, matriculation, political affiliation, marital status, veteran status or any other characteristic protected by law. The Organizers expect that their partners, contractors, affiliates and clients, including the Management Company, shall maintain an environment free of discrimination, including harassment, bullying, or retaliation when and where ever those individuals are conducting business with or on behalf of the Organizers or participating in the Organizers' events or activities. IEEE is an Equal Opportunity Employer and complies with Executive Order 11246 and hereby provides notice of its compliance with FAR 52-222-26, 41 C.F.R. 60-1.4, 41 C.F.R. 60-250.5 and 41 C.F.R. 60-741.5, which are hereby incorporated by reference.

14.5 **Subcontractors**: If Management Company will hire subcontractors in relation to this Agreement, Management Company shall: (a) certify in writing to the Organizers that all subcontractors are qualified to perform the work and will comply with all the Organizers' contracting requirements, including, but not limited to, insurance, confidentiality, anti-discrimination and safety standards; (b) remain fully responsible and liable for the subcontracted obligations and duties to the same extent as if Management Company had fulfilled the obligations and duties itself; (c) bear all responsibility for paying such subcontractors and not charge the Organizers a markup fee for the services performed by such subcontractors; and (d) indemnify, defend and hold IEEE and MTS, each individually, harmless from and against any and all claims, costs, damages, expenses and liabilities, including attorney fees and costs, resulting from or arising out of the subcontractor's performance, lack of performance, or

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breach of the Agreement. If Management Company hires subcontractors during the performance of the Services, Management Company will provide the Organizers with verification that it has satisfied all aforementioned obligations with regard to such subcontractors.

15. MISCELLANEOUS

15.1 **Notices**: All notices, consents and other communications hereunder shall be made in writing, by email, mail or courier, to the addressees designated below:

IEEE Meetings Conference & Events (MCE)
445 Hoes Lane, Piscataway, NJ 08854
Inside the U.S.: Toll Free +1. 855.640. 4333
Outside the U.S. +1. 732. 562 .3878

Marine Technology Society
1100 H Street NW Suite LL-100
Washington, DC 20005
202-717-8705

The Coulter Companies, Inc (dba MCI USA, www.mci-group.com)
7918 Jones Branch Dr, Suite 300
McClean, VA 22102
703-506-3260

The effective date of communications between the parties will be determined as follows:

(a) Communications sent via certified U.S. Mail or private mail delivery service will be effective as of the date received; or

(b) Communications sent via facsimile or email will be considered effective as of the date and time on the facsimile confirmation sheet or email retained by the sender.

For the avoidance of doubt, emails, including emails that bear an electronic "signature block" identifying the sender, do not constitute signed writings for purposes of this Agreement. However, scanned transmittals of original documents shall constitute signed writings for the purposes of this Agreement.

15.2 Choice of Law: Reserved

15.3 **Performance During Disputes**: Unless termination of this Agreement has been declared, Management Company shall be under the obligation to continue to perform its obligations under this Agreement while the parties seek to resolve any dispute.

15.4 **Force Majeure**: None of the parties shall be liable to the other parties for any delay or failure to perform arising out of causes beyond its reasonable control, including, but not limited to, government authority, riots, epidemics, unusually severe weather, fire, floods, war, terrorism, embargoes, labor disputes or strikes, nor shall any of the parties be subject to penalty for any reduction in Services if there is a cancellation by thirty percent (30%) or more of the Event attendees' due to such causes.

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15.5 **Change of Ownership or Management**: Management Company agrees to notify IEEE and MTS each individually at least seven (7) days in advance of any change of ownership or management team, or intent to initiate Chapter 11 or other bankruptcy proceedings, or any other change which might materially affect implementation of this Agreement, including but not limited to a change of ownership or management of any subcontractor. The Organizers may terminate this Agreement without liability, except as provided in Section 13.2, if the Organizers reasonably believe that the services provided by Management Company may be affected by such change in ownership or management of Management Company or petition in bankruptcy involving Management Company.

15.6 Proportioned Liability: Any obligations specified in the Agreement undertaken by the Organizers towards the Management Company shall be shared equally between IEEE and MTS. For the avoidance of doubt, IEEE and MTS shall have several, but not joint, liability and shall only be liable for their respective share of the payments due pursuant to this Agreement. If either MTS or IEEE does not pay their respective portion of any payment due pursuant to this Agreement, the Management Company shall not collect the outstanding amount from the other party.

15.7 Liability and Obligations Between MTS and IEEE - With respect to liability between MTS and IEEE, each party shall be liable only for its own actions and shall be liable to the other party with respect to its own negligence, willful misconduct, failure to perform fully its obligations in the Agreement in a timely manner, or breach of any of its representations and warranties in the Agreement (together, the "Breach"). MTS and IEEE may each collect all claims, damages, liabilities, losses and/or expenses (including attorneys' fees and costs and any claim or threatened claim of third parties), including losses pursuant to this Section, incurred by the non-breaching party as a result of the Breach by the breaching party.

15.8 **Entire Agreement/Pre-Existing Obligations**: This Agreement, including any Schedules attached hereto, constitutes the entire agreement between the parties hereto and shall supersede any and all prior or contemporaneous written or oral promises or representations.

15.9 **Modifications**: No amendments to or modifications of this Agreement shall be binding upon any party unless in writing signed by all parties.

15.10 **Waiver**: The failure of any party to require strict performance by another party of any provision hereof shall not affect the full right to require such performance at any time thereafter, nor shall the waiver by any party of a breach of any provision hereof be taken or held to be a waiver of any subsequent breach or default or as a waiver of any such rights or provisions hereunder.

15.11 **Severability**: If any part of this Agreement shall be held to be invalid or unenforceable under applicable law, a court of competent jurisdiction shall substitute a modified provision which carries out as nearly as possible the original intent of the parties, without in any way affecting the remaining parts of this Agreement.

15.12 **Parties in Interest***:* Nothing in this Agreement (whether express or implied) is intended to confer upon any person, other than the parties hereto, any rights or remedies under or by reason of this Agreement, nor is anything in this Agreement intended to relieve or discharge the liability of any other party hereto, nor shall any provision hereof give any entity any right of subrogation or action against any party. No party shall subcontract any part of this Agreement without the prior written consent of the other parties.

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15.13 **Binding Effect***:* This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and permitted assigns.

15.14 **Assignment:** No party may assign this Agreement or its rights or duties hereunder without the prior written consent of the other parties, which consent shall not unreasonably be withheld.

15.15 **Counterparts**: This Agreement may be executed in one or more counterparts, each of which when so executed and delivered shall be deemed an original, but all of which together shall constitute one and the same instrument.

15.16 **Section Headings**: Section headings contained in this Agreement are inserted for convenience of reference only, shall not be deemed to be part of this Agreement for any purpose, and shall not in any way define or affect the meaning, construction or scope of any of the provisions hereof.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day first above written.

THE INSTITUTE OF ELECTRICAL AND ELECTRONICS ENGINEERS, INCORPORATED

DocuSigned by:
By: Marie Hunter
4C0820D8E616451...
Title: Senior Director, IEEE

Date: 08-31-2019 | 4:23 AM PDT

THE COULTER COMPANIES, INC.

DocuSigned by:
By: Shawn Pierce
E0E364B059C3489...
Title: President, MCI USA, SEM&I

Date: 09-02-2019 | 4:39 PM PDT

MARINE TECHNOLOGY SOCIETY, INC.

DocuSigned by:
By: [illegible]
6ED8A3D5471D463...
Title: President

Date: 08-31-2019 | 7:08 AM PDT